

Law of Equity and Trusts (EQT1)

Module 2: Equitable Remedies

Lesson 2: Other Equitable Remedies

Lesson Notes

KMVTECHUG

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Rescission

Rescission sets a contract aside and aims to restore the parties to their pre-contract position. It is available for misrepresentation, certain mistakes, undue influence and unconscionable dealings, subject to bars such as affirmation, lapse of time, and impossibility of restitutio in integrum.

Rectification

Rectification corrects a written instrument so that it reflects the parties' true prior agreement. The claimant must usually prove a common continuing intention and that the document fails to record it by mistake. Courts require clear evidence.

Account, Delivery Up and Declarations

An account requires a defendant (often a fiduciary) to explain and pay over profits or sums due. Delivery up orders the return or destruction of documents or goods. Declaratory relief states the parties' rights without necessarily ordering further action — useful to clarify title or contractual positions.

Key idea: Choose the remedy that matches the wrong: rescission unwinds; rectification corrects the record; account recovers gains; declarations clarify rights.

Reflect: When would rectification be more appropriate than rescission?

Key Takeaways

- Rescission unwinds a contract and requires substantial restoration of positions.
- Rectification corrects documents to match true agreement — high evidential bar.
- Account is central against fiduciaries who make unauthorised profits.
- Declarations clarify rights and can support further relief.

Quick Revision Checklist

- ☐ I can explain rescission and its main bars.
- ☐ I can state what must be proved for rectification.
- ☐ I know when an account is typically ordered.
- ☐ I can distinguish delivery up from damages.
- ☐ I understand the use of declaratory relief.